

(48)

Tentative Ruling

Re: ***In the Matter of Brea Price***
Superior Court Case No. 26CU01534

Hearing Date: July 14, 2026 (Dept. 403)

Motion: Petition to Compromise Minor's Claim

Tentative Ruling:

To deny, without prejudice, the petition to approve the compromised claim of minor Brea Price. Petitioner must file an amended petition, with appropriate supporting papers and proposed orders, and obtain a new hearing date for consideration of the amended petition. (Super. Ct. Fresno County, Local Rules, rule 2.8.4.)

**If oral argument is timely requested, such argument will be heard
on Thursday July 16, 2026 at 3:30 pm.**

Explanation:

The petition submitted by petitioner seeks approval of the settlement of the personal injury claim of minor Brea Price ("minor") against Mia Amor Hernandez, by and through their insurer, Geico Insurance. There are issues with the petition that prevent approval.

The petition must be on form MC-350, verified by the petitioner and include all information having bearing on the reasonableness of the compromise. (Cal. Rules of Court, rule 7.950; Super. Ct. Fresno County, Local Rules, rule 2.8.4.)

The petition at Item 8 indicates the minor's injuries identified in the petition have resolved completely. The medical records attached do not reflect that the injuries have resolved. The only medical record attached was from the date of the incident, September 5, 2025, which indicated the minor had back and knee pain. This does not support the representation that the injuries have fully resolved.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on July 10, 2026
(Judge's initials) (Date)

(41)

Tentative Ruling

Re: ***Maria Cancino v. Costco Wholesale Corporation***
Superior Court Case No. 24CECG02417

Hearing Date: July 14, 2026 (Dept. 403)

Motion: By Defendant to Bifurcate

Tentative Ruling:

To grant defendant's motion to bifurcate.

***If oral argument is timely requested, such argument will be heard
on Thursday July 16, 2026 at 3:30 pm.***

Explanation:

Plaintiff Maria Carmen Cancino (Plaintiff) filed a complaint for personal injury and damages in June 2024. Plaintiff contends an employee of defendant Costco Wholesale Corporation (Costco) tripped Plaintiff as Plaintiff was entering the warehouse. Plaintiff's fall resulted in a serious cervical spine injury that required surgery. Costco disputes its liability for this accident. Costco moves to bifurcate trial of the liability and damages issues and to try the liability issue first.

*Bifurcation Will Expedite the Trial, Avoid Unnecessary
Cost and Delay, and Prevent Undue Prejudice*

The court has discretion to bifurcate the trial under Code of Civil Procedure section 598, which authorizes the court to make an order that the trial of any issue shall precede the trial of any other issue "when the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby, on motion of a party, after notice and hearing[.]" (See also, Code Civ. Proc., § 1048, subd. (b) [court may order separate trial of any cause of action or separate issue].) The objective of bifurcation "is avoidance of the waste of time and money caused by the unnecessary trial of damage questions in cases where the liability issue is resolved against the plaintiff." (*Trickey v. Superior Court* (1967) 252 Cal.App.2d 650, 653.)

" '[T]he primary purpose of section 598 is to permit the issue of liability in personal injury cases to be tried prior to that of damages when, in the opinion of the court, the facts of a particular case justify it.' [Citation.]" (*Foreman & Clark Corp. v. Fallon* (1971) 3 Cal.3d 875, 888, fn. 8.) The purpose of a separate trial on the liability issue is "to avoid wasting court time in cases where the plaintiff loses on the liability issue, to promote settlements where the plaintiff wins on the liability issue, and to afford a more logical presentation of the evidence, thus simplifying the issues for the jury. [Citation.]" (*Ibid.*)

Here, this case presents a straightforward cause of action for personal injury based on alleged negligence. Plaintiff contends Costco's employee lurched backward when maneuvering a row of shopping carts and knocked Plaintiff to the ground. Costco contends its employee is certain she was pushing a row of carts into the cart corral when she felt Plaintiff trip over the back of her ankle. Costco also intends to establish that Plaintiff is 75 years old and has used a cane since she was 60 years old 'because she felt like she would fall easily.' (Mem., p. 4:11-12.) The parties suggest Plaintiff intends to call two persons who were with Plaintiff when she fell as percipient witnesses to testify about what they saw.¹

The liability issue is relatively simple. The jury must determine whether they believe Plaintiff's witnesses or Costco's witnesses. Costco's experienced counsel estimates the liability phase will require about three court days. The witnesses for the liability phase are limited to Plaintiff, her two witnesses, and Costco's employees.

In contrast to the relatively simple issue of liability, the parties anticipate the witnesses for the damages phase will include Plaintiff, her two percipient witnesses to the fall, Plaintiff's treating physicians, before and after the fall, and multiple medical expert witnesses. In light of Plaintiff's pre-existing condition and the extensive medical treatment, which Costco will challenge, the damages phase will be lengthy with the testimony of many treating physicians and opinions of dueling experts. Costco estimates the damages phase will require five to ten court days at a minimum, and possibly weeks. Furthermore, if the jury were to hear evidence of Plaintiff's damages before deciding the issue of liability, it might allow its sympathy to influence its liability decision.

In sum, if Plaintiff loses on the liability issue, court time will not be wasted on damages. If Plaintiff wins, it will promote settlement, and afford a more logical presentation of evidence if a second phase is required. Thus, it will simplify the issues for the jury. Bifurcation will expedite the trial, avoid unnecessary costs and delays, and prevent undue prejudice to Costco.² Therefore, the court grants Costco's motion to bifurcate the issues of liability and damages, with the issue of liability to be tried first.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

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(Judge's initials) (Date)

¹ Both parties' memoranda include statements about the cause of the fall without supporting declarations. Plaintiff's liability witnesses are identified as Plaintiff's daughter and her daughter's boyfriend (Jaime decl., ¶ 3) or Plaintiff's granddaughter, Elizabeth Gonzalez, and Ms. Gonzalez's ex-boyfriend, Luis Alanis (Roberts decl., ¶ 3).

² Inasmuch as Costco moves for bifurcation to establish the order of trial, the court fails to see the relevance of Plaintiff's cited cases regarding two juries.